

ELIZABETH II



Kenya Republic Act 1965

1965 CHAPTER 5

An Act to make provision as to the operation of the law in relation to Kenya as a Republic within the Commonwealth. [23rd March 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to this Act, all law which, whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, was in force on 12th December 1964, or, having been passed or made before that date, comes or has come into force thereafter, shall, unless and until provision to the contrary is made by Parliament or some other authority having power in that behalf, have the same operation in relation to Kenya, and persons and things belonging to or connected with Kenya, as it would have apart from this subsection if Kenya had not become a Republic.

(2) This section applies to law of, or of any part of, the United Kingdom, the Channel Islands and the Isle of Man, and, in relation only to any enactment of the Parliament of the United Kingdom or any Order in Council made by virtue of any such enactment whereby any such enactment applies in relation to Kenya, to law of any other country or territory to which that enactment or Order extends.

(3) This section shall be deemed to have had effect from 12th December 1964.

Power to make consequential adaptations.

2.—(1) Her Majesty may by Order in Council make such adaptations in any Act of Parliament passed before 12th December 1964 as appear to Her necessary or expedient in consequence of Kenya having become a Republic.

(2) Any Order in Council made under subsection (1) of this section, and any Order in Council or other instrument made under any other enactment which varies or revokes a previous Order in Council or instrument in consequence of Kenya having become a Republic, may be made so as to have effect from 12th December 1964.

(3) Any Order in Council under subsection (1) of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament, and may be varied or revoked by a subsequent Order in Council.

Short title.

3. This Act may be cited as the Kenya Republic Act 1965.